

1. Valid Consent?

Find a service you use to which you have given *consent* for the processing of your personal data (Art 6 (1) a) GDPR). Have a look at the privacy notices, policies, or settings of this service.

- Are the basic legal conditions for this consent in your opinion in line with the new requirements and conditions set by the GDPR?

- You should provide an answer with justification based on the GDPR, where you refer to specific articles and paragraphs.

-service used: instagram

Privacy policy say consent should be freely given, but you can't use the app without agreeing to the data use for ads. Also not that simple to withdraw consent without completely deleting your account => GDPR art 7's (3) and (4) not respected, withdrawal of consent should be as easy as giving it, and this is a power imbalance somewhat

Instagram provides extensive details for their privacy policy and data and privacy settings -> article 13 respected

2. Your Right to Access your Personal Data

You have the right to know if personal data about you is processed by a controller. You also have the right to get access to, for example, the processing purposes, the data categories, data transfers, and duration of storage.

- Find the relevant parts in GDPR and study your rights as a "data subject".

- File a right-to-access request with a data processing service of your choosing.

Describe the mechanism that is put in place by the service to enable you to exercise this right (if any).

- Whether you get a response or not, think about how well your rights as a data subject are respected in practice. Your answer should again refer to specific articles and paragraphs of the GDPR.

Articles 15 right of access and 12 transparent communication grants right to confirmation access and info about processing, and requires controller to make it easier to exercise the rights and respond within a month.

For instagram, its pretty simple and easy to download info (accessible via settings), and you can choose which information, date range format and media quality

The data is pretty detailed and comprehensive, and i think it respects the gdpr pretty well and not that bad for a company of meta's size.

3. Anonymisation & Pseudonymisation

- What is the difference between anonymisation and pseudonymisation of personal data?

pseudoanonymisation is the security procedure where personal data is reversibly anonymised (no longer can be attributed to a specific data subject) without using any additional information, but this information is kept separately and can be accessed by

technical/organizational controls. Example would be replacing names with a unique user id in a dataset and still keeping a secure separate file that maps the ids back to the names. The data is still considered personal by gdpr and is fully protected, because you can re identify it

anonymisation is like pseudoanonymisation but irreversible, so you can no longer identify the data subject. The controller needs to ensure that nobody can ever reverse the process. This is not considered personal data by gdpr